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February 19, 2026

By: Howard

An Act relating to alcoholic beverage licenses; amending 37A O.S. 2021, Section 2-115, which relates to special event licenses; requiring certain applicant to hold certain liability insurance; requiring certain individual to ensure licensure of certain event; updating statutory language; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 37A O.S. 2021, Section 2-115, is amended to read as follows:

Section 2-115. A. A special event license may be issued to an organization, association, or nonprofit corporation organized for political, fraternal, charitable, religious, or social purposes. The holder of a special event license is authorized to sell and distribute alcoholic ~~beverage~~ beverages on the premises for which the license is issued.

B. The ~~ABLE~~ Alcoholic Beverage Laws Enforcement (ABLE) Commission shall promulgate rules governing the application for and the issuance of special event licenses. Such application shall require the applicant to hold general liability insurance, including

1 liquor liability coverage, in an amount not less than One Million
2 Dollars (\$1,000,000.00) per occurrence and Two Million Dollars
3 (\$2,000,000.00) aggregate.

4 C. The restrictions and rules which apply to the sale of mixed
5 beverages on the premises of a mixed beverage licensee also apply to
6 the sale of such beverages under the authority of a special event
7 license. Any act which if done on the premises of a mixed beverage
8 licensee would be a ground for revocation or suspension of the mixed
9 beverage license is a ground for revocation or suspension of a
10 special event license.

11 D. No special event license may be issued for any premises
12 already licensed by the ABLE Commission.

13 E. No special event license shall be required for an
14 organization, association, or nonprofit corporation which is an
15 economic development chamber or similar entity, provided the event
16 is not conducted primarily for fundraising purposes, and provided
17 the services of a licensed caterer are used to provide and
18 distribute the alcoholic beverages at the event.

19 F. An individual holding an employee license who is serving any
20 alcoholic beverage at a special event shall ensure that such event
21 has been properly licensed.

22 SECTION 2. This act shall become effective November 1, 2026.

23 COMMITTEE REPORT BY: COMMITTEE ON BUSINESS AND INSURANCE
24 February 19, 2026 - DO PASS